Article 8, Section 2 – Tax Dependency

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08.02.01 - General

A. General

The table below shows situations in which tax dependency status must be considered in order to establish the MFBU. MEM 50351

If an ...	Then ...
Applicant/beneficiary parent claims an 18 to 21 year old who is not living in the home as a tax dependent,	The tax dependency status must be considered.
18 to 21 year old applicant/beneficiary is claimed as a tax dependent by a parent not living in the home,	

An applicant may not be denied solely because an 18 to 21 year old tax dependent applied, but the parent(s) is/are required to complete the application process.

The tax dependency status of anyone 17 years and under need not be evaluated; the MFBU composition is determined by their living situation only.

Note: The information and procedures in this section do not apply to applicants for Minor Consent services.

MPG LTR 16 (5/88)

08.02.02 – Procedures

A. Application Registration Procedures

When the worker is completing the Application Registration, the question of tax dependency is not asked.

MPG LTR 16 (5/88)

B. Intake Procedures

Sections C, D, and E, below, provide the Intake procedures depending on whether the parent(s) are applying or the 18 to 21 year old is applying.

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C. Parent Applying

If the parent applicant claims an 18 to 21 year old not living in the home as a tax dependent, the worker must follow the actions in the table below.

Step	Action
1	Obtain all pertinent information including income and property of the 18 to 21 year old.
2	Include the 18 to 21 year old in the MFBU as a child. This applies even if the 18 to 21 year old is married.
3	Determine if the 18 to 21 year old is included as an eligible or ineligible member of the MFBU per MPG 08.01 Appendix A.

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D. 18 to 21 Year Old Applying – Not a Tax Dependent

If an applicant 18 to 21 years old living away from his/her parent(s) states he/she is not a tax dependent of the parent(s), no further tax dependency evaluation is necessary. The applicant's living situation only would determine the composition of the MFBU.

Contact must be made with the parent(s) if the applicant is unsure of the tax status or changes his/her statement. Clarification may be obtained by phone or letter.

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E. 18 to 21 Year Old Applying

If an applicant 18 to 21 years old living away from his/her parent(s) states he/she is a tax dependent of the parent(s), the worker must follow the actions in the table below.

– Is a Tax Dependent

<table>
<tr><th>Step</th><th>Action</th></tr>
<tr><td>1</td><td>Explain to the applicant that the parent(s)' income and property are used to determine eligibility and that the parent(s) must complete the application process.

<table><tr><th>If the applicants …</th><th>Then the worker shall …</th></tr><tr><td>choose to withdraw the application,</td><td>allow them to do so.</td></tr><tr><td>refuse to give the worker enough information to contact the parent(s),</td><td>deny the application for refusal to comply with requirements.</td></tr></table></td></tr>
<tr><td>2</td><td>Change the case name to that of the parent(s) if proceeding with the application.</td></tr>
<tr><td>3</td><td>Contact the parent(s).

<table><tr><th>If the parent(s) resides in …</th><th>Then …</th></tr><tr><td>San Diego County,</td><td>contact the parent(s) and have him/her complete the application. The granted case is carried in the FRC servicing the parent(s)' address. If the parent(s) refuse to cooperate, deny the case for refusal to comply with requirements.</td></tr><tr><td>another county in California,</td><td>the county of responsibility is the county where the tax claiming parent(s) resides. Forward the SAWS 1 and/or MC 210 and information on where to contact the parent(s) to that county with a cover letter.

Close the application as a Canceled application on the Collect Withdraw/Deny/Cancel/Terminate Program Detail window.

Keep a copy of the SAWS 1 and/or MC 210 in the case and document, thoroughly, the date the SAWS 1 and/or MC 210 and other information was sent to the county of responsibility.</td></tr><tr><td>another state,</td><td>send a Mail-In application packet.</td></tr></table></td></tr>
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		Allow 10 days for return. If no response, send a follow-up letter allowing an additional 10 days. If the parent(s) refuse to cooperate, deny the case for refusal to comply with requirements.
4	Determine who are eligible and ineligible members of the MFBU per MPG 08.01 Appendix A.	